

Yashpal v. State of U.P.

High Court of Judicature at Allahabad · Division Bench · 1 March 2019 · Writ-C No. 6985 of 2019 · **Writ dismissed; petitioner relegated to CGRF and Ombudsman.**

HEADNOTE

A writ challenging outstanding electricity dues is dismissed where the consumer does not dispute, and cannot show cause to bypass, the statutory alternative of the Consumer Grievance Redressal Forum under clause 7.10(i) of the Electricity Supply Code, 2005, and thereafter the Ombudsman under clause 7.10(iv), read with the UPERC (Consumer Grievance Redressal Forum & Ombudsman) Regulations, 2003.

FACTUAL SUMMARY

Yashpal held a 5 kW commercial connection (D.B.6-0708-080566). He had been convicted and sentenced on 23 May 2016 by the Special Judge (E.C. Act), Saharanpur, for theft of electrical energy. A bill showed outstanding dues of Rs. 5,84,221, last payable on 20 March 2017. An Executive Engineer's letter of 19 November 2018 put the claim at Rs. 8,16,938 and asked for proof of payment; none was produced. He approached the High Court against those dues.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::7.10

CGRF and Ombudsman as alternative remedy for electricity dues

HOLDING

A writ petition challenging outstanding electricity dues is dismissed where the consumer does not dispute, and cannot show cause to bypass, the statutory alternative of first approaching the Consumer Grievance Redressal Forum under clause 7.10(i) of the Electricity Supply Code, 2005 read with the UPERC (Consumer Grievance Redressal Forum & Ombudsman) Regulations, 2003, and thereafter the Ombudsman under clause 7.10(iv). ¶ 4-5

PRINCIPLE TAGS

clause-7.10-forum-ombudsman-route-for-billing-grievances

Counsel did not dispute that the dues grievance lies first before the Consumer Grievance Redressal Forum under clause 7.10(i) and then the Ombudsman under clause 7.10(iv); the writ was dismissed on that alternative-remedy route. ¶ 4-5

consumer-grievance-redressal-forum-remedy-clause-7.10

Clause 7.10(i) of the Supply Code, read with the 2003 CGRF and Ombudsman Regulations, was treated as the available forum for the petitioner's electricity-dues grievance. ¶ 4

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — MERITS OF THE OUTSTANDING ELECTRICITY DUES AND THE THEFT-RELATED ASSESSMENT

The Court did not examine whether Rs. 5,84,221 or the later Rs. 8,16,938 was correctly billed; it dismissed solely for alternative remedy. ¶ 2-5